

Court No. - 37

Case :- WRIT - C No. - 11997 of 2012

Petitioner :- Jaipal Singh

Respondent :- State Of U.P. Thru Secy. And Others

Petitioner Counsel :- Rajeev Kumar Saxena

Respondent Counsel :- C.S.C., Rajesh Tripathi

Hon'ble Vineet Saran, J.

Hon'ble Ashok Pal Singh, J.

As prayed by Sri Rajesh Tripathi, learned counsel for the respondent-Corporation, put up on 14.3.2012 as a fresh case so as to enable him to obtain instructions. On the next date Sri Tripathi shall produce the order in pursuance of which the impugned recovery notice has been issued to the petitioner.

Order Date :- 2.3.2012

p.s.

(Ashok Pal Singh, J.)

(Vineet Saran, J.)

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Hon'ble Sunil Ambwani, J.

Hon'ble Pankaj Naqvi, J.

Heard learned counsel for the parties.

The petitioner was found drawing electricity unauthorisedly from the main line to his residential house situate near Ambedkar School at Auraiya. On an inspection made by checking party several persons including the petitioner were found drawing electricity unauthorisedly by putting cables on main lines. A first information report was lodged and provisional assessment was made. Shri Rajesh Tripathi appearing for the respondents informs the Court that the provisional assessment orders were sent to the petitioner to which he has not filed any objection.

The petitioner is challenging the recovery certificate issued by the Executive Engineer to the Collector, Auraiya for recovering Rs.80,863/-, assessed on the basis of a formula for drawing electricity unauthorisedly prescribed in Annexure 6.3 of the U.P. Electricity Supply Code, 2005.

It is submitted that the police has submitted final report on 1.2.2011 in the crime against all persons on the ground that all the electricity bills have been paid and Shri Jaipal Singh's name was wrongly mentioned as the house belongs to some one else, and remains closed.

The petitioner had a right to file objections to the provisional assessment and thereafter an appeal under Section 127 of the Electricity Act, 2003.

The final report submitted by the police does not appear to have been submitted after making detailed investigation in as much as the police officer has not given the names of the persons in whose house the electricity was found unauthorisedly connected. He has also not found out whether Shri Jaipal Singh is residing in the same house or at some other place. The petitioner has not given the

address, where he resides.

In order to protect the interest of the petitioner and allowing him to file the objections, we **dispose of** the writ petition with directions that if the petitioner files objections to the provisional assessment, the copy of which has been given to the counsel of the petitioner in Court today, within a period of 15 days, the same will be decided within a month thereafter. The recovery in pursuance of the provisional assessment shall remain stayed for a period of two months, from today.

On a final order passed on the objections in respect of the assessment, the petitioner may avail remedy of appeal under Section 127 of the Electricity Act, 2003.

Order Date :- 14.3.2012

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